

contention that AJ's statements constituted extrinsic fraud does not assist him in avoiding application of the litigation privilege.

In any event, even if extrinsic fraud does constitute an exception to the litigation privilege, plaintiff has failed to show that defendants' statements constituted extrinsic fraud here. "Fraud is extrinsic where the defrauded party was deprived of the opportunity to present his or her claim or defense to the court, that is, where he or she was kept in ignorance or in some other manner, other than from his or her own conduct, fraudulently prevented from fully participating in the proceeding." (*In re Marriage of Stevenot* (1984) 154 Cal.App.3d 1051.)

"Any fraud is intrinsic if a party has been given notice of the action and has not been prevented from participating therein, that is, if he or she had the opportunity to present his or her case and to protect himself or herself from any mistake or fraud of his or her adversary, but unreasonably neglected to do so. [¶] When a claim of fraud goes to an issue involving the merits of the prior proceeding which the moving party should have guarded against at that time, or if the moving party was guilty of negligence in failing to prevent the fraud or mistake or in contributing thereto, or failed to take advantage of liberal discovery policies to fully investigate his or her claim, any fraud is intrinsic fraud." (*Id.* at p. 1069.)

Here, plaintiff has not alleged any facts showing that defendants' statements prevented him from appearing in the prior case, or that defendants did not give him notice of the case and an opportunity to defend himself in that action. In fact, he filed an answer in the case and raised affirmative defenses. (Request for Judicial Notice, Exhibit 4. The court will take judicial notice of Mamdouh and Zeyad's Joint Answer to GAI's Complaint.) He also had a full opportunity to appear in the arbitration and defend himself there, although he declined to personally participate in the arbitration. He clearly chose not to participate further in the case despite being on notice that it was pending against him. Therefore, any alleged fraud committed by AJ and GAI was intrinsic rather than extrinsic, and their statements are absolutely privileged under Civil Code section 47(b). Since plaintiff's complaint relies entirely on privileged statements as the basis for all of its claims, it fails to state a claim and the court intends to sustain the demurrer to it.

Furthermore, since the plaintiff's claims are based on statements that are absolutely privileged, there is no possibility that plaintiff could amend his complaint to cure the defects in his causes of action. Therefore, the court intends to sustain the demurrer to the complaint without leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/12/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Yellow Brick Road, Inc. v. Watson et al.***
Superior Court Case No. 23CECG00594

Hearing Date: June 17, 2026 (Dept. 503)

Motion: Default Prove-Up

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 6/15/2026.
(Judge's initials) (Date)